

**CHAPTER lxi.**

An Act to confirm certain Provisional Orders of the Local Government Board relating to Camborne Heston and Isleworth Mountain Ash New Windsor Southport Stratford-upon-Avon Tunbridge Wells and Whitley and Monkseaton.

A.D. 1903.

[30th June 1903.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament and that the provisions herein contained should be enacted with reference to certain of those Orders :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders as altered and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall subject to the provisions of this Act have full validity and force.

Orders
in schedule
confirmed.

2. The authorities mentioned in the Orders relating to Camborne Heston and Isleworth Mountain Ash Stratford-upon-Avon and Whitley and Monkseaton hereby confirmed shall not under the powers of those Orders purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

Restriction
of power to
take houses
of labouring
class.

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Special pro-
visions as
to New
Windsor.

3. The following provisions shall apply to the urban district council of the borough of New Windsor (herein-after referred to as "the Corporation") :—

(1) The Corporation shall not under the powers of the New Windsor Order 1903 hereby confirmed purchase or acquire ten or more houses which on the fifteenth day of December last were or have been since that day or shall hereafter be occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers unless and until—

(a) They shall have obtained the approval of the Local Government Board to a scheme for providing new dwellings for such number of persons as were residing in such houses on the fifteenth day of December last or for such number of persons as the Local Government Board shall after inquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case; and

(b) They shall have given security to the satisfaction of the Local Government Board for the carrying out of the scheme.

(2) The approval of the Local Government Board to any scheme under this section may be given either absolutely or conditionally and after the Local Government Board have approved of any such scheme they may from time to time approve either absolutely or conditionally of any modifications in the scheme.

(3) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced :

Provided that the Local Government Board may dispense with the last-mentioned requirement subject to such conditions if any as they may see fit.

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—

(4) Any provisions of any scheme under this section or any conditions subject to which the Local Government Board may have approved of any scheme or of any modifications of any scheme or subject to which they may have dispensed with the above-mentioned requirement shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court.

(5) For the purpose of carrying out any scheme under this section the Corporation may appropriate and use any lands for the time being belonging to them or which they have power to acquire :

Provided that nothing in this section shall relieve the Corporation from the necessity of obtaining the approval of the Local Government Board to such appropriation or use as would require such approval under any general Act.

(6) If the Corporation acquire or appropriate any house or houses for the purposes of the New Windsor Order 1903 or of any scheme under this section in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the scheme they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

(7) Subject to the provisions of this section the Corporation and the Local Government Board and their inspectors shall have and may exercise for any purpose in connexion with any scheme under this section all or any of the powers vested in them under the Public Health Act 1875 in the same manner in every respect as if the preparation and carrying into effect of such scheme were one of the general purposes of that Act :

Provided that all lands on which any buildings have been erected or provided by the Corporation in pursuance of any scheme under this section shall for a period of twenty-five years from the date of the scheme be appropriated for the purpose of dwellings and every conveyance demise or lease

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of such lands and buildings shall be endorsed with notice of this enactment:

Provided also that the Local Government Board may at any time dispense with all or any of the requirements of this subsection subject to such conditions if any as they may see fit.

- (8) The Corporation shall pay to the Local Government Board a sum to be fixed by that Board in respect of the preparation and issue of any Provisional Order in pursuance of this section and any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Definition
of labouring
class.

4. For the purposes of sections two and three of this Act the expression "labouring class" means mechanics artificers labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Short title.

5. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1903.

SCHEDULE.A.D. 1903.

URBAN DISTRICT OF CAMBORNE.

*Provisional Order to enable the Urban District Council of
Camborne to put in force the Compulsory Clauses of the
Lands Clauses Acts.**Camborne
Order.*

To the Urban District Council of Camborne;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Camborne (herein-after referred to as "the Council") require to purchase and take the lands described in the schedule hereto for the purpose of a cattle market for their district :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz.,—

38 & 39 Vict.
c. 55.

Art. I. The Council shall be empowered to put in force with reference to the lands described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the Camborne Order 1903.

[Ch. lxi.] *Local Government Board's* [3 EDW. 7.]
Provisional Orders Confirmation (No. 4) Act, 1903.

A.D. 1903.

*Camborne
Order.*

The SCHEDULE above referred to.

Parish of CAMBORNE in the County of CORNWALL.

No. and Colour on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupier.
1251 edged pink	Part of field - -	The Reverend George Brereton Hooper and Arthur Francis Basset.	Nicholas Pascoe the younger.

Given under the Seal of Office of the Local Government Board this
 Seventh day of April One thousand nine hundred and three.
 (L.S.) WALTER H. LONG President.
 S. B. PROVIS Secretary.

URBAN DISTRICT OF HESTON AND ISLEWORTH.

*Heston and
Isleworth
Order.*

Provisional Order to enable the Urban District Council of Heston and Isleworth to put in force the Compulsory Clauses of the Lands Clauses Acts.

To the Urban District Council of Heston and Isleworth ; —
 And to all others whom it may concern.

WHEREAS the Urban District Council of Heston and Isleworth (herein-after referred to as "the Council") require to purchase and take the lands described in the schedule hereto for the purpose of widening opening enlarging or otherwise improving the street called Twickenham Road Isleworth in their district :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz.,—

Art. I. The Council shall be empowered to put in force with reference to the lands described in the schedule hereto subject to the continuance of existing public rights of highway (if any) and for the purpose aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the Heston and Isleworth Order 1903.

The SCHEDULE above referred to.

A.D. 1903.

*Heston and
Isleworth
Order.*

Parish of ISLEWORTH in the County of MIDDLESEX.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1	Land forming part of the premises known as the George public-house.	Isleworth Brewery Limited	William Henry Collier and John Bowen.	William Henry Collier and John Bowen.
2	Land forming part of No. 1 Gumley Row.	Harriet Whiteman -	Charles Ernest Morris.	Charles Ernest Morris.
3	Land forming part of No. 2 Gumley Row.	Ditto - -	Thomas Cummins -	Thomas Cummins.
4	Land forming part of No. 3 Gumley Row.	Ditto - -	Ernest William Pickering.	Ernest William Pickering.
5	Land forming part of the premises known as Ivy House.	Ditto - -	Mrs. Robert Boyle	Mrs. Robert Boyle.
6	Land forming part of No. 1 Bath Villas.	Elizabeth Butler -	Maurice William Everett.	Maurice William Everett.
7	Land forming part of No. 2 Bath Villas.	Ditto - -	John Talbot Barnes	John Talbot Barnes.
8	Land forming part of No. 3 Bath Villas.	Ditto - -	Edward Joseph Line	Edward Joseph Line.
9	Land forming part of No. 1 Alma Cottages.	Ditto - -	Eliza Elizabeth Morris.	Eliza Elizabeth Morris.
10	Land forming part of No. 2 Alma Cottages.	Ditto - -	Arthur Walker -	Arthur Walker.
11	Land forming part of Clive House.	Ditto - -	—	—
12	Land forming part of an entrance road to Nos. 1 2 3 4 5 6 7 and 8 Bath Place.	Ditto - -	- - -	Alice Johnson George Lawton John William Walker John Henry Bentic George Ambridge Harold Hawkins and John Woodward.
13	Land forming part of the premises known as Laburnum Villa.	Ditto - -	- - -	Elizabeth Butler.
14	Land forming part of the premises known as Woodbine Cottage.	Ditto - -	Alfred Wiggins -	Alfred Wiggins.
15	Land forming part of Providence Cottage.	Ditto - -	George Parker -	George Parker.
16	Land forming part of Holme Court.	The Heston School Board and the Chiswick School Board.	The Heston School Board and the Chiswick School Board.	William Edwin Newberry.
17	Land adjoining the public footpath to Worple Road.	William James Stracey Clitherow.	Sarah Mann - -	Sarah Mann.

Provisional Orders Confirmation (No. 4) Act, 1903.

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Isleworth
Order.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
18	Land forming part of the "Jolly Gardeners" public-house.	The Governors of the United Westminster Schools viz. Sir Sydney Hedley Waterlow Bart. the Right Honourable Sir Marcus Samuel Sir Forrest Fulton Sir Henry Edmund Knight Sir James Thomson Ritchie Walter Vaughan Morgan Sir George Wyatt Truscott Frederick Plat Alliston Sir John Knill Bart. Frederick Morris Fry John Britten George Carey Foster John William Adamson Russell Spokes the Right Honourable Robert Collier Baron Monkswell Louis Henry Hayter Reginald White Granville-Smith the Right Honourable Reginald Charles Edward Abbot Baron Colchester Frederick Hollebone Arnold Whitaker Oxford Clement Young Sturge Robert Stuart de Courey Laffan Henry Arthur Hunt George Norgate Hooper the Honourable Edward Pierson Thesiger and the Honourable John Stafford Northcote.	The Royal Brewery Brentford Limited.	Jeannie Shapley.
19	Land adjoining the "Jolly Gardeners" public-house.	Ditto - -	Charles Thomas Upton.	Charles Thomas Upton.
20	Land - -	William James Stracey Clitherow.	Sarah Mann -	Sarah Mann.
21	Land forming part of Walnut Tree Cottage and the land adjoining.	Campbell Newington	William Mann and Thomas Edward Mann.	William Mann and Thomas Edward Mann and Harry Mead.
22	Land - -	William James Stracey Clitherow.	Sarah Mann - -	Sarah Mann.
23	Ditto - -	George Ralph Fitzroy Cole.	William Poupart Charles Poupart and Alfred Poupart.	William Poupart Charles Poupart and Alfred Poupart.
24	Land forming part of the premises known as Ivy Cottage and the land adjoining.	William James Stracey Clitherow.	Sarah Mann -	Sarah Mann.
25	Land - -	Ditto - -	Ditto - -	Ditto.
26	Land forming part of entrance road to Mogden House.	George Knevett -	George Tebbutt -	George Tebbutt.
27	Land - -	William James Stracey Clitherow.	Sarah Mann -	Sarah Mann.
28	Ditto - -	Thomas Skewes-Cox	William Ryde -	William Ryde.
29	Land forming part of entrance road to market gardens and to a public footpath from Twickenham Road to Worton Road.	Thomas Skewes-Cox George Henry Smith Alfred William Smith Edwin Figg Smith and the Trustees of the Isleworth Parochial Charities viz. Andrew Pears William Regester Henry Layton John Henry Champion McGill Thomas Harvey William Funge Thomas Gorman William Steen Francis Daws John Lister Beck Samuel Thomas Hill Edward William Goode William George Palmer Samuel Quinion and John William Seoble.	William Ryde Sarah Mann.	William Ryde Sarah Mann George Henry Smith Alfred William Smith and Edwin Figg Smith.

[3 EDW. 7.] *Local Government Board's* [Ch. lxi.]
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Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
30	Land and glass houses	George Henry Smith Alfred William Smith and Edwin Figg Smith.	- - -	George Henry Smith Alfred William Smith and Edwin Figg Smith.
31	Land forming part of the premises known as Cedar Cottage.	Mrs. L. R. Allen -	William Wisdom -	William Wisdom.

A.D. 1903.
Heston and Isleworth Order.

Given under the Seal of Office of the Local Government Board this
 Twentieth day of March One thousand nine hundred and three.
 (L.S.) WALTER H. LONG President.
 S. B. PROVIS Secretary.

URBAN DISTRICT OF MOUNTAIN ASH.

Provisional Order for altering the Mountain Ash Local Board Act 1886. *Mountain Ash Order.*

To the Urban District Council of Mountain Ash ; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Mountain Ash (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Mountain Ash (herein-after referred to as "the District") and the unrepealed provisions of the Mountain Ash Local Board Act 1886 (herein-after referred to as "the Local Act") as altered by certain other Local Acts which do not affect the subject-matter of this Order and by the Provisional Order herein-after mentioned are in force in the District ;

49 & 50 Vict.
 c. cxiv.

And whereas by an indenture of lease dated the Seventeenth day of May One thousand eight hundred and seventy-one and made between Henry Seymour Allen of the first part Lady Catherine Allen of the second part and John Nixon Thomas Valentine Smith and Edward Carter of the third part certain lands and premises which included the lands and premises described in Schedule A to this Order (herein-after referred to as "Schedule A") were demised to the said John Nixon Thomas Valentine Smith and Edward Carter for the term of ninety-nine years from the First day of January One thousand eight hundred and fifty-six at the yearly rent therein mentioned ;

And whereas the said lands and premises comprised in the herein-before mentioned lease were by an indenture of assignment dated the Fifteenth day

A.D. 1903. of March One thousand eight hundred and eighty-two assigned to Nixon's
Mountain Ash Navigation Company Limited (herein-after referred to as "the Navigation
Order. Company");

And whereas by an indenture of underlease dated the Twenty-first day of December One thousand eight hundred and eighty-three and made between the Navigation Company of the one part and the Mountain Ash Workman's Hall Company Limited (herein-after referred to as "the Hall Company") of the other part the lands and premises described in Schedule A were demised to the Hall Company for the term of ninety-nine years (less three days) computed from the First day of January One thousand eight hundred and fifty-four at the yearly rent of five pounds six shillings and eightpence;

And whereas by another indenture of lease dated the Twenty-first day of December One thousand eight hundred and eighty-three and made between the late Right Honourable Henry Austin Bruce Baron Aberdare of the one part and the Hall Company of the other part the lands and premises described in Schedule B to this Order (herein-after referred to as "Schedule B") were demised to the Hall Company for the term of ninety-nine years (less three days) from the First day of January One thousand eight hundred and fifty-four at the yearly rent of one pound thirteen shillings and eightpence;

And whereas by an agreement dated the Twenty-second day of February One thousand eight hundred and eighty-six and made between the Hall Company of the one part and the Mountain Ash Local Board (herein-after referred to as "the Local Board") of the other part and confirmed and made binding on the Hall Company and the Local Board by Section 85 of the Local Act the Hall Company agreed to sell to the Local Board and the Local Board agreed to purchase the undertaking of the Hall Company which included the Workman's Hall Mountain Ash (herein-after referred to as "the Workman's Hall") and all lands premises rights powers privileges easements and appurtenances belonging to the Hall Company or to any person in trust for them or to which they were in anywise entitled but subject to all contracts debts obligations and liabilities affecting the said undertaking;

And whereas by an indenture of assignment dated the Thirty-first day of December One thousand eight hundred and eighty-six and made between the Hall Company of the one part and the Local Board of the other part the undertaking of the Hall Company (including all their leasehold interests in the lands and premises described in Schedule A and Schedule B under the recited indentures of lease and underlease dated the Twenty-first day of December One thousand eight hundred and eighty-three and the Workman's Hall) was in pursuance of the said agreement and of the Local Act conveyed to the Local Board for the residues of the said terms of ninety-nine years (less three days) and at the rents and subject to the lessees' covenants and conditions in the said recited lease and underlease reserved and contained;

And whereas by Section 91 of the Local Act the Local Board were empowered to maintain enlarge alter and improve the Workman's Hall and

to adapt it to the purposes of a town or public hall and for offices of the Local Board and to such other purposes as they might think fit ;

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*Mountain Ash
Order.*

And whereas by Section 92 of the Local Act the Local Board were empowered to demise and let the Workman's Hall or town hall or any part or parts thereof for such periods at such rents and upon such conditions and stipulations as they might think fit ;

And whereas by Section 93 of the Local Act the Local Board were empowered to borrow the sum of two thousand pounds for the purchase and purposes of the Workman's Hall ;

And whereas it is expedient that the Council if and when they have acquired the reversionary interests expectant on the determination of the above-recited leases and underlease or failing such acquisition if and when they have obtained all necessary consents of the several lessors or their successors in title be empowered to take down and remove the Workman's Hall and to erect on the said lands such buildings as will provide suitable accommodation for the use of the Council and their officers and for other public or local purposes connected with the requirements of the District and to borrow money for the objects aforesaid ;

And whereas by the Mountain Ash Order 1896 (herein-after referred to as "the Order") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 18) Act 1896 provision was made for the raising and repayment of moneys which the Council were thereby authorised to borrow :

59 & 60 Vict.
c. cx.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered as is herein-after provided that is to say,—

38 & 39 Vict.
c. 55.

Art. I.—(1) The Council may purchase and acquire by agreement but not otherwise—

Authorising
acquisition of
certain inte-
rests in sche-
duled lands.

- (a) the reversion in fee simple expectant on the expiration or determination of the above-recited lease vested in the said Henry Seymour Allen of and in the lands and premises described in Schedule A ;
- (b) the reversion expectant on the expiration or determination of the above-recited underlease vested in the Navigation Company of and in the lands and premises described in Schedule A ; and
- (c) the reversion in fee simple expectant on the expiration or determination of the above-recited lease vested in the late Right Honourable Henry Austin Bruce Baron Aberdare of and in the lands and premises described in Schedule B.

(2) For the purchase and acquisition of any such reversion as aforesaid the provisions of the Public Health Act 1875 and of the incorporated enactments with respect to the purchase of lands by agreement for the purposes of the said Act shall apply as if the said provisions and incorporated enactments

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*Mountain Ash
Order.*Authorising
demolition of
Workman's
Hall and erec-
tion of new
buildings.

were herein re-enacted and in terms made applicable to the said purchase and acquisition and to the purposes of this Order.

(3) If and when the Council have acquired all such interests in the said lands and premises as are mentioned in subdivision (1) of this Article or failing such acquisition if and when they have obtained all such consents of the several lessors or their successors in title as are necessary for the purpose but in either case not otherwise the Council may take down and remove the Workman's Hall and any other buildings on the said lands and may erect on the said lands in accordance with plans elevations and sections approved by the Local Government Board such buildings as will provide suitable accommodation for the use of the Council of the Overseers of the Poor of any parish in the District and of any other public or parochial authority having jurisdiction in the District and of the officers or servants of the Council overseers or other authority as aforesaid and for any other public or local purpose connected with the requirements of the District or its inhabitants.

Application of
certain provi-
sions of Local
Act to new
building.

(4) The provisions of Sections 91 and 92 of the Local Act shall with the necessary modifications and adaptations extend and apply to any building erected in pursuance of subdivision (3) of this Article as if the said provisions were herein re-enacted and in terms made applicable thereto and the Council may otherwise allow any such building to be used or occupied for any public or local purpose connected with the requirements of the District or its inhabitants upon such terms and upon and under such conditions and stipulations and subject to such regulations as the Council deem expedient.

Application of
revenue.

(5) Subject to the provisions of this Order the expenses of the Council in the execution thereof shall be defrayed out of the district fund and general district rate of the District and the Council shall carry to the account of the said district fund and shall apply as part of that fund any rents or other moneys received in respect of the letting or the use and occupation of any building erected in pursuance of subdivision (3) of this Article.

Additional bor-
rowing powers
for purposes
of Order.

Art. II.—(1) The Council may with the sanction of the Local Government Board and subject to the provisions of this Order borrow upon the security of the district fund and general district rate of the District such sums not exceeding in the whole the sum of five thousand pounds as may be necessary for the purpose of defraying any expenses properly chargeable to capital which may be incurred under or in pursuance of Article I. of this Order and in connexion with the buildings erected in pursuance of subdivision (3) of that Article.

Period for
repayment
of moneys bor-
rowed under
this Article.

(2) The moneys borrowed under this Article shall be repaid within such period not exceeding sixty years from the date of borrowing as the Council with the sanction of the Local Government Board determine and the period so determined and sanctioned shall with reference to the moneys to be repaid be the prescribed period for the purposes of the Local Loans Act 1875 and of the provisions of the Order as applied by Article III. of this Order.

Application of
provisions of
Order of 1896

Art. III. The provisions of Article III. and of Articles V. to IX. and of Article XI. of the Order shall with the necessary modifications apply to any

[3 EDW. 7.]

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Provisional Orders Confirmation (No. 4) Act, 1903.*

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*Mountain Ash
Order.*

moneys borrowed under this Order as if the said moneys had been borrowed in pursuance of the provisions of Article II. of the Order and Article X. of the Order shall apply to the costs of any local inquiry held with reference to the purposes of this Order.

to the raising
and repayment
of borrowed
moneys and
to costs of
inquiries.

Art. IV. This Order may be cited as the Mountain Ash Order 1903.

Short title.

The SCHEDULES above referred to.

SCHEDULE A.

All that piece or parcel of land being a portion of Troedyrhiw Forest Farm situate at Mountain Ash in the County of Glamorgan containing by admeasurement three hundred and twenty square yards or thereabouts and delineated on the plan to the above-recited Indenture of Underlease dated the Twenty-first day of December One thousand eight hundred and eighty-three together with so much of the Workman's Hall as is erected thereon.

SCHEDULE B.

All that piece or parcel of land being a portion of the farm of Aberffrwd situate at Mountain Ash in the Parish of Llanwunno in the County of Glamorgan containing by admeasurement one hundred and one square yards or thereabouts and delineated on the plan to the above-recited Indenture of Lease dated the Twenty-first day of December One thousand eight hundred and eighty-three together with so much of the Workman's Hall as is erected thereon.

Given under the Seal of Office of the Local Government Board this
First day of April One thousand nine hundred and three.

(L.S.)

WALTER H. LONG President.

S. B. PROVIS Secretary.

BOROUGH OF NEW WINDSOR.

*Provisional Order to enable the Urban District Council for the
Borough of New Windsor to put in force the Compulsory
Clauses of the Lands Clauses Acts.*

*New Windsor
Order.*

To the Mayor Aldermen and Burgesses of the Borough of New Windsor;—

And to all others whom it may concern.

WHEREAS the Mayor Aldermen and Burgesses of the Borough of New Windsor acting by the Council as the Urban District Council for that Borough (herein-after referred to as "the Corporation") require to purchase

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Provisional Orders Confirmation (No. 4) Act, 1903.

A.D. 1903. and take the lands described in the schedule hereto for the following purposes viz.,—
New Windsor Order.

- (1) The lands described in Part I. of the said schedule for the purpose of making a new street from Peascod Street to Goswell Road ;
- (2) The lands described in Part II. of the said schedule for the purposes of public walks and pleasure grounds ; and
- (3) The lands described in Part III. of the said schedule for the purpose of extending the Corporation depôt :

38 & 39 Vict. c. 55. Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz.,—

Art. I. The Corporation shall be empowered to put in force with reference to the lands described in the schedule hereto subject to the continuance of existing public rights of highway (if any) and for the purposes aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the New Windsor Order 1903.

The SCHEDULE above referred to.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
County of BERKS.				
PART I.				
Parish of CLEWER WITHIN.				
1	Garden - -	Thomas William Copeland.	- -	William Willmore.
2	Part of yard and carpet beating shed.	The Windsor Steam Laundry Company Limited.	Edward Taylor	Edward Taylor.
Parish of NEW WINDSOR.				
6	Dwelling-house -	Emma Dickinson -	- -	John Wilson.
7	Ditto - -	Ditto - -	- -	James Carpenter.
8	Ditto - -	Ditto - -	- -	Matilda Weeks.
9	Ditto - -	Ditto - -	- -	Sophia Stephens.
10	Ditto - -	Ditto - -	- -	Charles Vickers.
11	Ditto - -	Ditto - -	- -	Henry Butterworth.

[3 EDW. 7.]

*Local Government Board's
Provisional Orders Confirmation (No. 4) Act, 1903.*

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Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.	A.D. 1903. <i>New Windsor Order.</i>
Parish of CLEWER WITHIN.					
19	Dwelling-house and yard.	Lieut.-Colonel Lionel James Richardson-Gardner.	- - -	James Digby.	
20	Ditto - -	Ditto - -	- - -	John Henry Wheeler.	
Parish of NEW WINDSOR.					
21	Dwelling-house and yard.	Lieut.-Colonel Lionel James Richardson-Gardner.	- - -	Henry Streamer.	
22	Ditto - -	Ditto - -	- - -	Arthur Ernest Lloyd.	
23	Ditto - -	Ditto - -	- - -	Charles Hattey.	
24	Ditto - -	Ditto - -	- - -	William Pithouse.	
25	Shop dwelling-house garden and out-buildings.	Edward Smith -	Harry George Ottrey.	Harry George Ottrey.	
26	Ditto - -	Ditto - -	- - -	Edward Smith.	
27	Shop dwelling-house yard and outbuildings.	William Holderness -	Pearkes Gunston and Lee.	Pearkes Gunston and Lee.	
28	Shop dwelling-house bake-house stable and yard including part of dwelling-house over No. 29.	Ditto - -	Sidney George Holderness and George Holder-ness.	Sidney George Holderness and George Holderness.	
29	Cellar under part of No. 28.	Henry Lewin Green -	- - -	Sarah Green Henry Lewin Green.	
30	Part of the Wellington Hall attached to the "Wellington" public-house.	Burge and Company	- - -	Robert Gardner.	
PART II.					
Parish of CLEWER WITHOUT.					
31	Part of an eyot or island.	Arthur Stovell and Gerald Stovell.	- - -	William J. Harvey.	
32	Meadow land -	Ditto - -	- - -	The Corporation and William J. Harvey.	
Parish of CLEWER WITHIN.					
32A	Meadow land - -	Arthur Stovell and Gerald Stovell.	- - -	The Corporation.	
Parish of ETON in the County of BUCKS and Parish of CLEWER WITHIN in the County of BERKS.					
33	An eyot or island dwelling-house work-shops and buildings.	Samuel J. Walden -	George Akerman -	George Akerman.	

[Ch. lxi.] *Local Government Board's* [3 Edw. 7.]
Provisional Orders Confirmation (No. 4) Act, 1903.

A.D. 1903.

*New Windsor
Order.*

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
County of BERKS.				
PART III.				
Parish of CLEWER WITHIN.				
44	Dwelling-house yard and outbuildings.	Arthur Stovell and Gerald Stovell.	Kate Herbert -	Richard Henry Beau- mont.
45	Shed - -	Ditto - -	Ditto - -	George Berry.
46	Ditto - -	Ditto - -	Ditto - -	Henry Vincent.
47	Ditto - -	Ditto - -	Ditto - -	George Walker.
48	Ditto - -	Ditto - -	Ditto - -	Ditto.
49	Ditto - -	Ditto - -	Ditto - -	Ditto.
50	Ditto - -	Ditto - -	Ditto - -	Ditto.
51	Yard - -	Ditto - -	Ditto - -	Berry Beaumont Vin- cent Walker and Knapp and Sons.
52	Dwelling-house yard garden and out- buildings.	Ditto - -	Ditto - -	Henry Vincent.
53	Ditto - -	Ditto - -	Ditto - -	Frederick Bennett.
54	Garden and green- house.	Ditto - -	Ditto - -	Josiah Nash.
55	Shed and workshops -	Ditto - -	Ditto - -	Edward Knapp and Henry Vincent.

Given under the Seal of Office of the Local Government Board this
Eighth day of April One thousand nine hundred and three.

(L.S.)

WALTER H. LONG President.

S. B. PROVIS Secretary.

BOROUGH OF SOUTHPORT.

*Southport
Order.*

Provisional Order for altering a Confirming Act.

To the Mayor Aldermen and Burgesses of the Borough of Southport; —

And to all others whom it may concern.

WHEREAS the Borough of Southport (herein-after referred to as “the Borough”) is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as “the Corporation”) are

the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875 ;

And whereas the unrepealed provisions of the Southport Improvement Act 1871 (herein-after referred to as "the Local Act") as altered by the Southport Order 1895 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1895 (which Order and Act are herein-after respectively referred to as "the Order of 1895" and "the Confirming Act of 1895") and the Southport Order (No. 1) 1899 (herein-after referred to as "the Order of 1899") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 5) Act 1899 and as altered by certain other Local Acts and Provisional Orders confirmed by Parliament which do not affect the subject-matter of this Order are in force in the Borough ;

And whereas by the Local Act the Corporation were empowered to borrow money for gasworks purposes ;

And whereas by Article II. of the Order of 1895 as altered by Article I. of the Order of 1899 the Corporation were empowered to borrow with the sanction of the Local Government Board and subject to the provisions of that Order on the securities therein named for the purchase of gas cooking ovens stoves meters burners or other fittings or apparatus used in the supply or consumption of gas for cooking or heating purposes the sum of fifteen thousand pounds ;

And whereas it is expedient that the Corporation should be empowered to borrow further moneys for the said purpose :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Confirming Act so far as it relates to the Order of 1895 and as altered by the Order of 1899 shall be further altered as follows :—

Art. I. Article II. of the Order of 1895 shall have effect as if the words "sixteen thousand five hundred pounds" were substituted therein for the words "fifteen thousand pounds."

Art. II. This Order may be cited as the Southport Order 1903 and the Order of 1895 the Order of 1899 and this Order may be cited together as the Southport Orders 1895 to 1903.

Given under the Seal of Office of the Local Government Board this
Eighth day of April One thousand nine hundred and three.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

A.D. 1903.

*Southport
Order.*

34 & 35 Vict.
c. cxl.

58 & 59 Vict.
c. lxxxvii.

62 & 63 Vict.
c. cx.

38 & 39 Vict.
c. 55.

Increase of bor-
rowing powers
for gas pur-
poses.

Short titles.

A.D. 1903.

BOROUGH OF STRATFORD-UPON-AVON.

*Stratford-
upon-Avon
Order.*

*Provisional Order to enable the Urban District Council for the
Borough of Stratford - upon - Avon to put in force the
Compulsory Clauses of the Lands Clauses Acts.*

To the Mayor Aldermen and Burgesses of the Borough of
Stratford-upon-Avon ; —

And to all others whom it may concern.

WHEREAS the Mayor Aldermen and Burgesses of the Borough of Stratford-upon-Avon acting by the council as the Urban District Council for that Borough (herein-after referred to as "the Corporation") require to purchase and take the lands described in the schedule hereto for the disposal of the sewage of the said Borough and for providing access to such lands :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz.,—

Art. I. The Corporation shall be empowered to put in force with reference to the lands described in the schedule hereto subject to the continuance of existing public rights of highway (if any) and for the purposes aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the Stratford-upon-Avon Order 1903.

The SCHEDULE above referred to.

A.D. 1902.

*Stratford-upon-Avon
Order.*

Parish of MILCOTE in the County of WARWICK.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupier.
1	A piece of arable land called "Ash Tree Field" or "Stall's Ground."	The Trustees of the Right Honourable Lionel Sackville Baron Sackville viz. the Honourable Nigel Christopher Walsh and Thomas Sutton Timmis.	Arthur Henry Pearce.
2	A piece of arable land called "The Hill."	Ditto - -	Ditto.
3	A piece of arable land called "Thistly Piece."	Ditto - -	Ditto.

Given under the Seal of Office of the Local Government Board this
Thirty-first day of March One thousand nine hundred and
three.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

BOROUGH OF TUNBRIDGE WELLS.

Provisional Order for altering a Confirming Act.

*Tunbridge
Wells Order.*

To the Mayor Aldermen and Burgesses of the Borough of Tunbridge Wells;—

And to all others whom it may concern.

WHEREAS the Borough of Tunbridge Wells (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875;

And whereas there are in force in the Borough the unrepealed provisions of the Tunbridge Wells Water Act 1865 (herein-after referred to as "the Local Act") as altered by certain Provisional Orders duly confirmed by Parliament and including the Tunbridge Wells Order 1897 (herein-after referred to as "the Order") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 14) Act 1897 (herein-after referred to as "the Confirming Act");

28 & 29 Vict.
c. cciv.

60 & 61 Vict.
c. cxli.

A.D. 1903.

*Tunbridge
Wells Order.*

And whereas by Article I. of the Order the Corporation were empowered with the sanction of the Local Government Board to borrow such sums not exceeding in the whole the sum of fifty thousand pounds as might from time to time be necessary for the purposes of their water undertaking in addition to the sums which they were authorised to borrow for those purposes under the several enactments mentioned in the Order;

And whereas it is expedient that the Corporation be empowered to borrow further moneys for the said purposes :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Confirming Act so far as it relates to the Order shall be altered so as to provide as follows viz.,—

Increase of
borrowing
powers for pur-
poses of water
undertaking.

Art. I. Article I. of the Order shall have effect as if the words "one hundred thousand pounds" were substituted therein for the words "fifty thousand pounds."

Short title.

Art. II. This Order may be cited as the Tunbridge Wells Order 1903.

Given under the Seal of Office of the Local Government Board this
Twenty-fifth day of March One thousand nine hundred and
three.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

URBAN DISTRICT OF WHITLEY AND MONKSEATON.

*Whitley and
Monkseaton
Order.*

Provisional Order to enable the Urban District Council of Whitley and Monkseaton to put in force the Compulsory Clauses of the Lands Clauses Acts.

To the Urban District Council of Whitley and Monkseaton ; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Whitley and Monkseaton (hereinafter referred to as "the Council") require to purchase and take the lands situate in the district and described in the schedule hereto for the following purposes viz.,—

- (1) The lands described in Part I. of the said schedule for the purpose of widening opening enlarging or otherwise improving the street called Station Road ;
- (2) The lands described in Part II. of the said schedule for the purpose of widening opening enlarging or otherwise improving the street called Whitley Road ;

(3) The lands described in Part III. of the said schedule for the purpose of widening opening enlarging or otherwise improving the street called The Promenade ;

(4) The lands described in Part IV. of the said schedule for the purpose of widening opening enlarging or otherwise improving the street called Park Avenue :

A.D. 1903.

*Whitley and
Monkseaton
Order.*

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz.,—

38 & 39 Vict.
c. 55.

Art. I. The Council shall be empowered to put in force with reference to the lands described in the schedule hereto and for the purposes aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the Whitley and Monkseaton Order 1903.

The SCHEDULE above referred to.

Township of WHITLEY in the County of NORTHUMBERLAND.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessee or reputed Lessee.	Occupiers.
PART I.				
STATION ROAD IMPROVEMENT.				
1	Land forming part of garden to No. 1 Albany Gardens.	Edmund Field	- - - -	Edmund Field.
2	Land forming part of garden to No. 33 Albany Gardens.	Godfrey Hastings	- - - -	Messrs. Maynard.
PART II.				
WHITLEY ROAD IMPROVEMENT.				
3	Land with part of grocer's shop No. 164 Whitley Road thereon and part of the garden to No. 162 Whitley Road.	John Mulholland	John Charlton Lamb.	—
4	Land forming part of garden to No. 160 Whitley Road.	The Executors of the Will of John Charlton deceased.	- - - -	Bradford and Co.

A.D. 1903.

Whitley and
Monkseaton
Order.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessee or reputed Lessee.	Occupiers.
5	Land forming part of garden to No. 158 Whitley Road	The Representative of J. P. Tomlinson deceased viz. Margaret Catherine Tomlinson.	- - -	Margaret Catherine Tomlinson.
6	Land with part of china dealer's shop thereon.	James Clementson	- - -	William Stewart Palmer.
7	Land with part of fruiterer's shop thereon.	Ditto	- - -	Annie Rodham.
8	Land with coachhouse stable and other erections thereon.	William Hunter	- - -	William Hunter.
9	Land being part of the "Burnfoot Field."	William Renner and Thomas Brown.	- - -	Vacant.
PART III.				
THE PROMENADE IMPROVEMENT.				
10	Land being part of the garden to No. 7 Rockcliffe.	Ada Gallon	- - -	Ada Gallon.
11	Land being part of the garden to No. 6 Rockcliffe.	Margaret Glaholm	- - -	Margaret Glaholm.
12	Land being part of the garden to No. 5 Rockcliffe.	Thomas Green	- - -	Percy Strange.
13	Land being part of the garden to No. 4 Rockcliffe.	Ditto	- - -	The proprietors of the St. Aiden's School for Boys.
14	Land being part of the garden to No. 3 Rockcliffe.	John Archbold	- - -	Susannah Ely.
15	Land being part of the garden to No. 2 Rockcliffe.	Edward Sparks	- - -	Edward Sparks.
16	Land being part of the garden to No. 1 Rockcliffe.	Elizabeth Rowell	- - -	Jane McKenzie.
17	Land being part of the "Sea View Field."	The Executors and Trustees of the Will of Alfred Styan deceased viz. Robert Walton Styan Charles Leopold Styan Edward Robson and William Auton.	- - -	Vacant.
18	Ditto - - -	Ditto	- - -	Ditto.
19	Land with the erections and buildings thereon being part of the premises known as "Haven House."	Wilfred Hudleston	- - -	Mary Douglas.
20	Land with the erections and buildings thereon being part of the premises known as "Bawtree's Temperance Hotel."	Thomas William Bawtree.	- - -	Thomas William Bawtree.
21	Land being part of the "Shop Field."	Thomas Davison Hall	- - -	Vacant.

[3 EDW. 7.]

Local Government Board's

Provisional Orders Confirmation (No. 4) Act, 1903.

[Ch. lxi.]

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessee or reputed Lessee.	Occupier.	A.D. 1903. <i>Whitley and Monkseaton Order.</i>
PART IV.					
PARK AVENUE IMPROVEMENT.					
22	Land - - -	Thomas Davison Hall	- - -	John Shiells.	
23	Ditto - - -	The Right Reverend Thomas William Wilkinson D.D. the Very Reverend James Rooney the Very Reverend Henry Wrennall the Very Reverend John Anderton Cooke the Reverend Thomas Ord and the Reverend George Edward Howe.	- - -	David Hoggard.	

Given under the Seal of Office of the Local Government Board this

Seventh day of April One thousand nine hundred and three.

(L.S.)

WALTER H. LONG President.

S. B. PROVIS Secretary.

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